

KABC010136382023



IN THE COURT OF THE XXX ADDL. CITY CIVIL JUDGE
AT BENGALURU CITY
(CCH-31)

DATED THIS THE 29th DAY OF APRIL, 2026

PRESENT

Sri. MADHU N.R., LL.M.,
XXX Addl. City Civil & Sessions Judge,
Bengaluru.

Ex.NO.1303/2023

DECREE HOLDER: M/s. SBI Cards & Payment
Services Ltd.,
#Unit No.401 & 402, 4th floor,
Aggarwal Millenium Tower,
E 1,2,3, Netaji Subhash Palace,
Wazirpur,
New Delhi-110 034.

Also at :
Unit Nos.1001-1002, 10th floor,
'A' Block, Embassy Heights,
13 Magrath Road,
Ashok Nagar,
Bengaluru-560 025.
Represented by its
power of attorney
Rakesh.K

(By Pleader Sri.C.M.A, Adv.)

/VS/

JUDGMENT DEBTOR: M.G.Rangaswamaiah
No.296, 4th Cross,
7th Block, Koramangala,
Bengaluru-560 034.

Present Address:
No.410, 7th Cross, 1st Stage,
2nd Phase, Kalyan Nagar,
Nagarbhavi Main Road,
Bengaluru-560 072.

(By Pleader Sri.S.B.L., Adv.)

ORDER

The Decree-Holder has filed this Execution petition against the Judgment-Debtor seeking recovery of award amount passed in Arbitration Case No.ARB/WR/1290/22 dated 18.07.2022 directing the Judgment-Debtor to pay the decree amount.

2. The brief facts of the petition are :

It is submitted that, the arbitration proceedings had been initiated against the respondent/JDr in

A.C.No.ARB/WS/1290/22 during the year 2022. Despite several opportunities, the respondent failed to appear and contest the claim. Hence, the Arbitrator proceeded further placing the respondent exparte and award has been passed against the respondent to pay a sum of Rs.2,80,954.79 alongwith interest at the rate of 12%p.a from 25.05.2022 till the date of realization of the amount vide order dated 18.07.2022. The decree-holder has filed this execution petition for recovery of the award amount passed in the arbitration proceedings.

3. On the otherhand, the JDr has filed objections to main petition contending that, execution petition is not maintainable as the Decree-holder has not supplied all documents except arbitral award copy. Further in the cause title of the petition, the old address of JDr is shown and in the Estamp paper, it depicts the present address of JDr. Therefore, the JDr allege that the old address is shown in cause title to evade service of notice to JDr during the

course of arbitral proceedings. However, the notice is not served on the JDr. Further, in the arbitral award, there is no mention of date, month and year of issuing credit card and arbitral award cardholder agreement copy is not produced and it was not signed by JDr at any point of time. Further, the arbitral award disclosure letter dated 02.05.2022 was not issued to the JDr by the sole arbitrator and no address details are mentioned in the award. The alleged award notice dated 02.05.2022 was not at all served on JDr as to where to appear or before whom to appear. Similarly notice dated 25.05.2022 was not at all served and no address is specified, hence, the question of placing JDr exparte on 14.06.2022 does not arise at all. Further, the documents relied by the Decree-holder is not furnished to JDr. The credit card details are no where mentioned in the award. The JDr allege that the award is obtained by violating principles of natural justice and Arbitration and Conciliation Act.

3(a). It is submitted that, the judgments relied by the sole arbitrator are not applicable to the facts of the present case. Further there is no agreement entered between the DHr and JDr, thus, no breach of terms of agreement arises and sole arbitrator failed to prove the existence of credit card liability. The arbitral award does not specify details of date, month, year of issuance of credit card and there is no cause of action. Further submits that, the credit card facility was availed long back in 2004-2005 and not in 2022 and all the dues of SBI cards were already cleared through cheque to an authorized SBI cards officer, who assured to close the matter. The recovery proceedings initiated by the DHr is barred by limitation as the credit cards dates are way back in the year 2004-2005, while arbitration is initiated on 14.03.2022 after lapse of more than 18 years. The arbitral award is unconstitutional and cannot be enforced as there was no opportunities given to JDr to contest the proceedings and it is exparte award

prejudicial to the JDr. Hence, prays to reject the execution petition and set aside the arbitral award dated 18.07.2022 passed by the sole arbitrator.

4. Heard the learned counsel for both the parties.
Perused the records.

5. In the facts and circumstances of the case on hand, the points that arise for the consideration of this Court are: -

1. Whether the Decree-holder is entitled for the reliefs sought for ?
2. What Order?

6. The answer of this Court to the above points are as follows:-

Point No.1: In the Affirmative

Point No.2: As per the Order,
for the following:

REASONS

8. **Point No.1:** This Execution Petition is filed by the Decree-Holder seeking recovery of the arbitral award

amount passed in Arbitration Case No. ARB/WR/1290/2022 dated 18.07.2022, whereby the Judgment-Debtor was directed to pay a sum of Rs.2,80,954.79 along with interest at 12% per annum from 25.05.2022 till realization.

9. As per the arbitral award, a demand legal notice dated 14.03.2022 was issued to the respondent and the same, along with postal receipts, was produced before the Arbitral Tribunal. It is further stated that vide letter dated 02.05.2022, the parties were called upon to appear before the Tribunal on 25.05.2022. On the said date, the claimant appeared, however, the respondent failed to appear. Thereafter, the claimant filed statement of claim. Despite several opportunities, the respondent failed to contest the matter. Subsequently, notice dated 14.06.2022 was issued intimating that in case of non-appearance, the matter would be proceeded ex-parte. Even thereafter, the respondent failed to appear, and hence, the Tribunal

proceeded ex-parte against the respondent on 13.07.2022 and ultimately passed the award on 18.07.2022. Since the respondent failed to comply with the award, the present execution petition is filed.

10. The Judgment-Debtor filed objections contending that the execution petition is not maintainable. It is contended that except the arbitral award, no supporting documents have been furnished by the Decree-Holder. It is further contended that the Decree-Holder mentioned an old address in the cause title, resulting in non-service of notices during arbitral proceedings. The Judgment-Debtor denies receipt of notices dated 02.05.2022, 25.05.2022, and 14.06.2022. Further, the Judgment-Debtor also contends that no agreement was entered into between the parties and no document is produced to establish credit card liability. It is further contended that the alleged transaction pertains to the years 2004–2005 and the dues were already cleared, and therefore, the claim is barred by

limitation. It is also contended that the arbitral award was passed in violation of principles of natural justice and without providing an opportunity to contest the matter.

11. Heard both sides and perused the material on record.

12. It is an undisputed fact that the arbitral award dated 18.07.2022 has been passed directing the Judgment-Debtor to pay the decretal amount. A perusal of the award discloses that the Arbitral Tribunal recorded issuance of demand notice dated 14.03.2022 and subsequent notices calling upon the respondent to appear before it. The award further reflects that despite providing opportunities, the respondent failed to appear and was set ex parte. The objections raised by the Judgment-Debtor regarding non-service of notices, absence of agreement, non-production of documents, and limitation relate to the merits of the arbitral proceedings.

13. It is well settled that the Executing Court cannot go behind the decree or arbitral award. The validity or correctness of the award cannot be examined in execution proceedings. If the Judgment-Debtor is aggrieved by the arbitral award on the grounds urged, the proper remedy is to challenge the same under Section 34 of the Arbitration and Conciliation Act.

14. In the present case, no material is placed before this Court to show that the arbitral award has been set aside or stayed by a competent court. Therefore, the objections raised by the Judgment-Debtor do not render the award inexecutable. The Counsel for the DHR has relied upon the judgment passed by the Hon'ble Supreme Court of India in *Food Corporation of India Vs. S N Nagarkar reported in* (2002) 2 SCC 475 wherein it is held that the "the Court cannot examine the correctness of the order sought to be executed after attaining finality". The said judgment squarely applies to the present case.

Accordingly, in the light of above findings and observations this Court answers the Point No.1 in the Affirmative.

15. Point No.2: In view of the foregoing reasons and as per the observations made in respect of point Nos.1, this Court proceeds to pass the following:-

ORDER

The Execution Petition filed by the Decree-holder under Order XXI Rule 11 is hereby allowed.

The Judgment-Debtor is directed to pay a sum of Rs.2,80,954.79 (Rupees Two Lakhs Eighty Thousand Nine Hundred Fifty-Four and Paise Seventy-Nine only) along with interest at 12% per annum from 25.05.2022 till realization. In default, the Decree-Holder is at liberty to take appropriate execution steps in accordance with law.

(Dictated to the Stenographer Grade-II directly on computer, computerized by her, corrected and then pronounced by me in open court this the 29th day of April, 2026.).

MADHU N R

Digitally signed by MADHU N R
Date: 2026.05.02 10:27:23
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(MADHU N.R)

XXX Addl. City Civil and Sessions Judge,
Bengaluru.

